



**Amended Order under Section 69
Residential Tenancies Act, 2006
And section 21.1 of the Statutory Powers Procedure Act**

Citation: Mastropietro v Nahmias, 2026 ONLTB 7176

Date: 2026-01-20

File Number: LTB-L-089674-24-AM

In the matter of: 203 Clanton Park Rd
North York ON M3H2E9

Between: Anna Mastropietro Landlord

And

Jodie Nahmias Tenant
Yaccov Aronson

Irregular amendment request

On January 6, 2026, the Tenant's legal representative, Kathleen Lovett, sent me a direct, ex parte communication objecting to the original order issued on December 29, 2025. Given that this objection has been provided through irregular processes and without notice to other parties, it is reproduced in its entirety below:

I have attached the LTB Order issued December 29, 2025, for LTB-L-089674-24.

The language in the Order states in para 1: "the proceedings have commenced" – was there an actual hearing? There is no Notice of hearing in the portal, my office nor my clients ever received any Notice of Hearing. If there was a hearing, my clients nor my office were served. There is no Notice of hearing in the portal as well.

If there was no hearing, and this was a simple WD by counsel for the landlord, please have the Order retracted, as an email should have been simply issued from the LTB stating the application was withdrawn, not issuing an Order with my clients names on it, which is prejudicial and stating that a proceeding had commenced. We receive emails on a regular basis from the LTB confirming an application has been withdrawn, WITHOUT issuing an Order.

The landlord had 12 months to withdraw this application which was voided in January 2025. It is my client's position that counsel for the landlord committed sharp practice by leaving this application number active in the LTB, despite our repeated demands that this application be withdrawn.

My clients have filed a T2 regarding the landlord filing in Equifax/Trans Union a bogus nonpayment of rent issue. This Order may assist the landlord with their false claims, the application was long voided, January 2025.

I am requesting that this Order be retracted/rescinded. Please review all items in the portal regarding this issue. If you have any questions, please advise.

I am to take this to be an irregular request to amend the order. To proceed expeditiously, I shall address accordingly despite the impropriety of format.

The Board's files show that this matter was scheduled for a hearing on February 10, 2025, and a Notice of Hearing issued. That hearing was cancelled by a combined interim order LTB-T-022709-24-IN LTB-L-089674-24-IN issued on January 16, 2025 pursuant to an adjudicative case conference held on January 6, 2025. That interim order contains the following determinations relating to application LTB-L-089674-24:

6. The Landlords state that the L1 application has been scheduled for a hearing on February 10, 2025 and requested the matter proceed accordingly.

7. The Tenants representative said the Tenants intend to raise the T2/T6 issues under s.82 of the Act at the hearing of the L1 application.

8. In my view, as per s.183 of the Act, the most expeditious method of determining the issues is to combine the Tenant and Landlord applications to be heard on a date to be set by the Board.

9. I note, the Landlord is aware of potential deficiencies with the L1 application.

On the face of the interim order of January 16, 2025, it is evident that application LTB-L-089674-24 was spoken to at the adjudicative case conference of January 6, 2025, and that paragraph 9 of the interim order indicates that the matter was discussed before a Member.

Subsection 200(4) of the *Residential Tenancies Act, 2006* (the "Act") requires that "An applicant may withdraw an application after the hearing begins with the consent of the Board."

This statutory requirement has been clarified by Rule 17.3 of the *LTB Rules*, "An oral or electronic hearing begins when parties first come before the Member or DRO and this includes an appearance on a preliminary matter. After an oral or electronic hearing begins the application cannot be withdrawn without the consent of the Member or DRO."

I find therefore that, in the specific circumstances of the procedural history disclosed on the face of the Board's records, the hearing has begun within the meaning of s. 200(4) of the Act and Rule 17.3, as the interim order and associated adjournment sheet show that the matter came before the Member in the course of the case conference of January 6, 2025 for application LTB-T-022709-24. The Board's consent to withdrawal is therefore in my view required, and the administrative withdrawal sought in lieu thereof in the irregular request to amend would not be appropriate in the circumstances. The withdrawal order evidences the Board's required consent under s. 200(4), and nothing more.

As no substantive determinations have been made in the withdrawal order, the hypothetical argument that the order might be used in support of a purported false claim

is in my view immaterial, as the withdrawal creates no situation of *res judicata* other than evidencing that the Board has consented to the withdrawal of the Landlord's application. The Tenant and Landlord remain on their respective proof of whatever issues they wish to prove or disprove before the Board in any future T2 hearing.

I have, in the interest of precision, elected to amended paragraph 1 to remove what may be seen as an overly conclusory statement and replace it with a more detailed procedural history. These changes are bolded and underlined below. The order is otherwise unamended, save for the portion of the preamble addressing the irregular request to amend, which is in bold.

Ms. Lovett is reminded of Rule 1.9 of the LTB Rules, and specifically the procedural impropriety of direct communication with an adjudicator outside of appropriate processes in relation to an adjudicative matter. The Board's processes for requesting amendments to and/or reviews of orders are both well-established and effective. Seeking to circumvent those processes by means of irregular communication with a Member, Vice Chair, or the Associate Chair is not appropriate, particularly from a licensee of some seniority. Further or future requests of this sort (whether on this matter or others) shall be either directed to the LTB general e-mail address or uploaded to the Portal only, without copying or directly writing a Member, Vice Chair, or the Associate Chair.

Anna Mastropietro (the 'Landlord') applied for an order to terminate the tenancy and evict Jodie Nahmias and Yaccov Aronson (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

1. **The matter was previously scheduled for a hearing on February 10, 2025, which hearing was cancelled to be rescheduled after the matter was addressed at a case conference on January 6, 2025.** On December 28, 2025, the Landlord's representative filed a request to withdraw the application and I consented to the request.
2. The application having been withdrawn, the LTB's file is closed.

December 29, 2025

Date Original Order Issued

January 20, 2026

Date Amended Order Issued

Ian Speers

Associate Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.